

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.

Complainant,

v.

SM LINE CORPORATION

Respondent.

Docket No. 23-01

DECLARATION OF KRISTINE O. LITTLE

KRISTINE O. LITTLE hereby declares as follows:

1. I am an attorney at Holland & Knight LLP (“H&K”), counsel for Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) in the above-captioned matter.

2. I am a member in good standing of the Bar of the District of Columbia and have filed an appearance in this proceeding.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. On October 17, 2023, Respondent SM Line Corporation (“Respondent” or “SM Line”) produced a document with bates number SM Line_0156832 (“Subject Document”) to SEA.

5. The Subject Document was produced in its native format (Excel), with a slip cover sheet for the spreadsheet listed with the designation: “CONFIDENTIAL-ATTORNEY’S EYES ONLY” (“AEO”).¹

¹ Due to the pending privilege issues, Complainant has not attached the Subject Document as an exhibit.

6. In a production of over 52,000 documents, over 3,200 have this confidential AEO designation by SM Line; the slip cover sheet for the Subject Document is one of them. There are no markings on the excel spreadsheet itself that have privileged markings.

7. When pulling the metadata for the Subject Document, it has a title listed “privileged and confidential” and was created by “Sung-Hoon Lee”, a non-attorney employee of SM Line’s System Maintenance Team on or about “4/27/2023 7:06 AM.”

8. On January 18, 2024, Respondent’s counsel sent an email to Complainant’s counsel, claiming for the first time that the Subject Document is “privileged” because it was “created in anticipation of litigation at the request of counsel.”

9. On January 25, 2024, counsel for Complainant and Counsel for Respondent conducted a meet and confer, where they discussed, among other things, the alleged privilege of the Subject Document.

10. At the meet and confer, Respondent’s counsel claimed that the document was inadvertently produced due to a “clerical error.”

11. When Complainant’s counsel questioned why Respondent’s counsel did not raise the inadvertent production or alleged privilege issue when they were introduced as exhibits in the deposition of Sarah Lee (taken on December 21, 2023) or the deposition of Ho-Yoon Kim (taken on January 17, 2024) Respondent confirmed that the counsel of record defending the deposition of Ms. Lee and Mr. Kim have never seen the Subject Document before and, therefore, did not recognize them at all, much less its allegedly privileged nature.

12. At the meet and confer SM Line counsel assured SEA that the production and review of the documents was proper, but when SEA counsel questioned if SM Line outside counsel

had actually reviewed the SM Line production, counsel could not provide an unequivocal yes, only stating that the presumably self-collection process was “interactive.”

13. **Exhibit No. 1** attached to Complainant’s Motion for Determination of Claim of Privilege and Waiver of Same Concerning a Single Document Produced by Respondent (“Motion”) is a true and correct copy of an excerpt of the Deposition of Sarah Lee taken on December 21, 2024.

14. **Exhibit No. 2** attached to Complainant’s Motion is a true and correct copy of an excerpt of the Deposition of Ho-Yoon Kim taken on January 17, 2024.

15. **Exhibit No. 3** attached to Complainant’s Motion is a true and correct copy of an email from SM Line counsel to SEA counsel on January 18, 2024.

16. **Exhibit No. 4** attached to Complainant’s Motion is a true and correct copy of email exchanges among counsel for the parties between January 18, 2024 and January 21, 2024.

17. **Exhibit No. 5** attached to Complainant’s Motion is a true and correct copy of an excerpt of the Deposition of YeonHui Yi taken on January 11, 2024.

I certify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: January 28, 2024

/s/ Kristine O. Little
Kristine O. Little
Holland & Knight LLP